

From: Dr Rich Mclean rich@richmclean.com.au 
Subject: Fwd: LETTER OF DEMAND – OUTSTANDING DEBT TO NDIA [SEC=OFFICIAL]
Date: 14 May 2021 at 12:07 pm
To: schemedebtmanagementteam@ndis.gov.au, Amy Delzoppo Delzoppo.Amy@comcare.gov.au
Cc: info@workcover.vic.gov.au, info@worksafe.vic.gov.au, Hao Wu Hao.Wu@ndis.gov.au, enquiries@ndis.gov.au, enquiries@ndia.gov.au



Dear NDIA, AMY, Workcover, Worksafe, NDIS

I need to know if I am covered by commcare for workcover please urgently.

If I can rec give a debt from them for an advance payment, you would think that I am an 'employee'

Please can you all answer this.

Thanks

As a registered provider and in debt to the NDIA as my 'employer', whom I am a 'sole trader' and 'contract' to:

I stopped work on the 22nd Jan - due to an injury/illness I sustained at work. I have attached the workcover forms I filled out. I have medical evidence from my doctor to back it up. I have other evidence from my work under the NDIA that reasonably translates the situation I was triggered by by my client of the NDIS.

The reluctance of my private health insurance to reimburse what I was covered for - income assist - led me to be destitute & become bankrupt and further due to the financial distress this caused in addition to the triggered response I had while at work, I was further incarcerated against my will and hospitalised where I sustained injuries complicated by the situation.

1) Workcover says I am covered, but covered by which insurer? I assume it is Commcare.

2) I have called the NDIS & NDIA and they say I am NOT covered for workers compensation through the NDIA NOR the NDIS, even though I have registered NDIS provider ID number 4050046572 - and you are an 'employer' of myself who is paid in wages, through the portal of PRODA - a government agency - hence the NDIA is the people I contract to and currently owe money to as an 'employee'. The NDIA had gifted me this money though COVID because it is a responsible thing to do for an 'employee' that is under the auspice of NDIA.

3) Because I was denied cover for my stress related illness that was explicitly work-related by my private insurer, I was forced to bankruptcy so because this debt was incurred when I went bankrupt - I CANNOT pay.

4) This private insurance company were brutal in their assessment and it has not been resolved - it is still before AFCA - in addition they say they will pay it IF I have a workcover claim for the same 'injury' or 'psychological injury' for the same condition.

5) Hence I have been in conversation with Commsure the federal governments insurance agency to see if I am covered by them I ie: who will my insurer be if not the NDIA?

6) This debit reasonably demonstrates in an acute way that the NDIA actually IS my employer, and hence you would assume, I would be covered under federal insurer.

So I wish to state and ask of Commsure, the NDIA, the NDIS, workcover, and work safe:

Is it reasonable for me to conclude I will be covered for workcover by Commsure because this debt is exemplary of me even though I am a sole trader, to be an 'employee' of the NDIA?

q) If not, why not? Please provide evidence in legislative terms that demonstrates my exemption of cover by Commsure.

I remind you that the NDIS quality and safeguards commission is in the dropdown box on the menu of Commcare's website for claims.

Please treat this as urgent

Please treat this as urgent.

Thanks for all your replies.

Rich

Dr Rich McLean

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Web: www.richmclean.com.au

Please see below too:

Re Amy

On 13 May 2021, at 4:07 pm, Amy Delzoppo <Delzoppo.Amy@comcare.gov.au> wrote:

OFFICIAL

Good afternoon Richard

Thank you for your time yesterday.

As discussed, National Disability Insurance Agency (NDIA) have advised that you are not employed by them and they are not paying your wage. Please find attached the emails NDIA provided to Comcare.

When a new claim is received, Comcare must be satisfied that the claim has been lodged by an employee as defined under the *Safety Rehabilitation and Compensation Act 1988* (SRC Act). If not, then coverage does not exist for the person under the SRC Act.

Subsection 5(1) to (15) of the SRC Act provides coverage for the following employees:

- Employees of ACT Government
- Employees of the Commonwealth
- Employees who work for Members of Parliament
- Members of the Australian Federal Police
- **Persons employed under a contract of service**
- Persons works as apprentices or graduate for the Commonwealth
- Employees of Commonwealth authorities and licenced corporations
- Persons declared by the Minister to be Commonwealth employees
- Persons declared by the Minister to be employees of the Australian Capital Territory

NDIA have stated you are not an NDIA employee. Therefore, I have explored whether you are engaged under a contract of service with NDIA. Generally the key indicators of a contract of service are:

- The NDIA has the power to hire the person engaged for the job

NOTE: The NDIA 'approved' me, and can indeed, fire me.

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- The payment is in the form of wages and the NDIA deducts tax and pays superannuation
- The person engaged in being paid by the NDIA and not through a separate company

NOTE: The above would accurately describe this as TRUE

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- The NDIA has the right to supervise and control the manner in which the employee does his work

NOTE: The above would accurately because I have to do an audit my the NDIS quality Assurance and safeguards Commission. If I dont meet those, and I am yet to find out - I will be excluded from my job.

-
- The person engaged in subject to the NDIA's disciplinary standards and any other internal department policies which provide guidance and standards of behaviour.

NOTE: The above would accurately because I have to do an audit my the NDIS quality Assurance and safeguards Commission. If I dont meet those, and I am yet to find out - I will be excluded from my job. Additionally I have to make progress reports, lease with different organisations and do risk assessments and additionally have to comply with 'reportable instances' within a definite timeframe.

NDIA's response suggest that you do not meet these key indicators.

I DISAGREE

Based on the information available, I am not satisfied you are an employee under the SRC Act and cannot be covered for workers' compensation from Comcare.

What do you think now I have outlined the above?

Please treat this as URGENT, as I am homeless.

Rich

You are welcome to provide a copy of your contract with NDIA which should set out the terms and conditions of your engagement with them. If you would like to provide this, could you please do so by 20 May 2021? If nothing further is received from you by this time, I will need to decline your claim based on the available evidence not supporting you are an employee as defined under the SRC Act.

Warmest regards,

Amy Delzoppo

Senior Claims Manager

Canberra 7 | Claims Management Canberra

Claims Management Group | Canberra

P: (02) 6276 0354

<image001.png>

Comcare

GPO Box 9905, Canberra, ACT

2601

1300 366 979

www.comcare.gov.au

<image002.png> <image003.png>

COVID-19 Update: While we are unable to serve you in person during COVID-19, we are still working and you can [contact us](#) via phone or email. Work health and safety is our highest priority. We monitor this situation daily and regularly update our [COVID-19 guidance](#).

Rich is a registered NDIS Therapeutic Support Provider, as an Artist-Life-Coach, Author, & Advocate, in Melbourne.

I acknowledge the Indigenous people as the Traditional Custodians of the lands where we live, learn and work.

'The bad news is - nothing is permanent, however the good news is - nothing is permanent.'

NDIS Registered Provider ID: 4050046572
ABN: 72066207615

Begin forwarded message:

From: SCHEMEDEBTMANAGEMENTTEAM <SCHEMEDEBTMANAGEMENTTEAM@ndis.gov.au>

Subject: LETTER OF DEMAND – OUTSTANDING DEBT TO NDIA [SEC=OFFICIAL]

Date: 13 May 2021 at 3:46:44 pm AEST

To: "rich@richmclean.com.au" <rich@richmclean.com.au>

Dear Provider,

Recovery of Advance Payment for Registered NDIS Providers

Thank you for speaking to us recently in regard to repayment of the Advance Payment, which was made by the NDIA to your organisation on or around the 30th March 2020.

Please see attached an invoice for the balance owing of \$1,048.73

Please arrange payment by COB 20 May 2021.

The NDIA reserves its rights in respect of the Advance Payment.

If you have any queries in relation to the invoice please contact the schemedebtmanagementteam@ndis.gov.au mailbox.

Yours Sincerely

Scheme Debt Management Team
National Disability Insurance Agency

Email schemedebtmanagementteam@ndis.gov.au



Delivered by the
National Disability
Insurance Agency

***** IMPORTANT: This e-mail is for the use of the intended recipient only and may contain information that is confidential, commercially valuable and/or subject to legal or parliamentary privilege. If you are not the intended recipient you are notified that any review, re-transmission, disclosure, dissemination or other use of, or taking of any action in reliance upon, this information is prohibited and may result in severe penalties. If you have received this e-mail in error please notify the sender immediately and delete all electronic and hard copies of this transmission together with any attachments. Please consider the environment before printing this e-mail *****



Delivered by the
National Disability
Insurance Agency

Collector of Public Monies
GPO Box 700
CANBERRA ACT 2601
Email: schemedebtmanagementteam@ndis.gov.au

ABN 25617475104

TAX INVOICE

Vendor MCLEAN, RICHARD WILLIAM 2 McCubbin Street FOOTSCRAY VIC 3011 rich@richmclean.com.au	Date 13.05.2021 Document No 300063677318 NDIA No 4050046572 Due Date 20.05.2021
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DESCRIPTION	AMOUNT	GST	TOTAL
Recovery – COVID 19 Advance Payment - 300063667057	\$1,048.73	0.00	\$1,048.73

Total Amount Payable			\$1,048.73

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Preferred method of payment is Electronic Funds Transfer to:
Account Name: National Disability Insurance Agency
BSB: 092-009, Account No: 121335, Reserve Bank Australia, Canberra.
Please include the invoice number 300063677318 in your payment reference.

Alternatively, please remit this tear-off with your cheque to the above address.

Name	Vendor No.	Date	Document No.	Total Amount
MCLEAN, RICHARD WILLIAM	4050046572	13.05.2021	300063677318	\$1,048.73

